

(Comp., ¶ 5.) She also alleges all Defendants are the agents, servants, and employees of their co-defendants. (*Id.* at ¶ 6.) She alleges “Defendants, and each of them, formed a special relationship between the security company and/or security guards and subject premises.” (*Id.* at ¶ 34.)

Despite these general conclusory allegations as to Doe 2, Plaintiff argues in opposition and subsequent filings that Montano is actually John Doe, not Doe 2, as he is currently alleged to be. This is not alleged in the present complaint and alters the legal landscape. Plaintiff’s representation in opposition that discovery revealed Montano was personally present and interacted with Plaintiff before she fell suggests a direct negligence theory may be viable if properly pled. The negligent hiring claim, by contrast, does not fit the facts as represented, Montano allegedly acted directly, not as a supervisor who negligently hired John Doe. If Montano *is* John Doe (as the recent dismissal suggests), then the 5th cause of action against Montano makes no sense against him at all. Moreover, the intentional torts were only alleged against John Doe, who was dismissed, and now Plaintiff contends Montano is actually John Doe, not Doe 2. Given the vague allegations and the inconsistent allegations and representations regarding Montano the demurrer for uncertainty is sustained.

5.

CASE #	CASE NAME	HEARING NAME
CVME2502324	OROSCO VS STATER BROS	MOTION FOR SANCTIONS

Tentative Ruling: Motion Denied. Plaintiff’s Request for Sanctions Denied.

Stater Bros. now moves for sanctions under Code of Civil Procedure section 128.7, seeking dismissal of the entire action with prejudice and monetary sanctions against Plaintiff and her counsel. It contends Plaintiff’s claims are objectively frivolous for two independent reasons: (1) Plaintiff’s deposition testimony contradicts essential elements of her claims, and (2) her claims are barred as a matter of law by shopkeeper’s privilege.

Plaintiff opposes and argues Stater Bros. applies the wrong legal standard, treating the motion as if it were a summary judgment motion rather than a sanctions motion. Plaintiff contends her testimony reflects the traumatic nature of the incident and does not negate the factual basis for her claims. She contends that shopkeeper’s privilege is an affirmative defense involving factual questions about reasonableness and excessive force, not appropriate for resolution on a sanctions motion. Plaintiff requests \$5,600 in sanctions for opposing the motion.

In reply, Stater Bros. argues the opposition confirms why sanctions are warranted as the numerous admissions during discovery destroy the basis for her complaint. It argues there is no evidentiary support for her claims and the motion should be granted.

An attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P., §

128.7; *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619,623.)¹ Whether the paper or pleading is frivolous or improper is tested objectively. (*Bockrath v. Aldrich Chem. Co., Inc.* (1999) 21 Cal.App.4th 71, 82.) The sanctions process is usually commenced by party motion, although a court may issue an order to show cause *sua sponte*. (C.C.P., §§128.5(f)(1), 128.7(c)(2).)²

Under Code of Civil Procedure section 128.7, a court may impose sanctions for filing a pleading if the court concludes the pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168.) A claim is factually frivolous if it is “not well grounded in fact” and it is legally frivolous if it is “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (*Id.* at p. 167.) In either case, to obtain sanctions, the moving party must show the party’s conduct in asserting the claim was objectively unreasonable. (*Ibid.*) A claim is objectively unreasonable if “any reasonable attorney would agree that [it] is totally and completely without merit.” (*In re Marriage of Flaherty* (1982) 31 Cal.3d 637, 650; *Guillemin, supra*, at p. 168.) A court has broad discretion to impose sanctions if the moving party satisfies the elements of the sanction’s statute. (See *Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 421.)

The moving party must first serve the motion for sanctions on the offending party at least 21 days before filing it; this safe harbor provision allows the opposing party to withdraw or appropriately amend the “challenged paper, claim, defense, contention or denial.” (C.C.P., § 128.7(c)(1); *Barnes v. Department of Correction* (1999) 74 Cal.App.4th 126, 130; *Nutrition Distribution, LLC v. Southern SARMS, Inc.* (2018) 20 Cal.App.5th 117, 129 [regarding 2017 amendment to CCP § 128.5 to include safe harbor requirement].) At the end of the 21-day waiting period, if the pleading is not withdrawn, the moving party may file the motion. (C.C.P., § 128.7(c)(1); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-99; *Nutrition Distribution, LLC, supra*, 20 Cal.App.5th at 129-30.)

First, Stater Bros. counsel declares that states it served the proposed notice and motion on April 29, 2026. (Parmar Decl., ¶ 6, Exh. D.) However, the notice does not contain a hearing date nor is the attached proof of service executed. Although not argued in opposition, a notice served on the party against whom sanctions is sought must comply with all of the requirements of C.C.P., § 1010, including the time and place of the motion hearing. Otherwise, it does not satisfy the “safe harbor” requirement even if a second notice stating the time and place is served when the motion is filed. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538 [document served stating sanctions motion would be filed “on or after” specified date (more than 21 days later) did not

¹A party “presents” a pleading or paper if it *signs, files, submits or later advocates* the positions set forth in the original document. (CCP 128.7(b).) Thus, a continuing obligation is imposed. That is, a litigant’s obligations regarding the contents of papers are not measured solely as of the time the papers are filed with the court. The same certification applies when the litigant “advocates” claims or defenses previously pleaded. (*Id.*) Therefore, sanctions may be awarded where an attorney/litigant argues positions contained in earlier-filed papers after learning such positions are without evidentiary support or legal merit.

² When awarding sanctions, the court is required to describe the sanctionable conduct and explain the basis for the sanction imposed. (CCP § 128.7(e). See also *Hopkins & Carley v. Gens* (2011) Cal.App.4th 1401, 1418.)

provide notice of hearing date and thus did not satisfy “safe harbor” requirement]; *J.N. v. Goldberg* (2026) 120 Cal.App.5th 544, 549-550.) No sanctions can be imposed under a motion filed before expiration of the 21-day “safe harbor” no matter how improper the conduct sought. (*Goodstone v. Southwest Airlines Co.* (1998) 63 Cal.App.4th 406, 418-419.) As Stater Bros. failed to technically comply with the safe harbor requirements, the motion is denied.

Besides, on the merits, Stater Bros. motion is premised on the argument that Plaintiff’s deposition testimony is so contradictory that no reasonable attorney could continue to maintain her claims. The existence of contradictory testimony does not automatically render claims objectively frivolous under section 128.7. Rather, it presents the type of factual dispute that belongs at summary judgment or trial, where the trier of fact can assess credibility, weigh conflicting evidence, and determine what actually happened.

Finally, Plaintiff requests \$5,600 in sanctions against Stater Bros. and its counsel, arguing the motion is frivolous. While Stater Bros. failed to comply with the procedural safe harbor requirement, the motion presented colorable arguments that, while ultimately unpersuasive, do not warrant counter-sanctions.